

**GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED et al v.
TRANSPIRE BIO INC.**

Plaintiff:	GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, GlaxoSmithKline LLC and Glaxo Group Limited
Defendant:	TRANSPIRE BIO INC.
Counter-Claimant:	TRANSPIRE BIO INC.
Counter-Defendant:	GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited and GlaxoSmithKline LLC
Case Number:	0:2026cv61712
Filed:	June 16, 2026
Court:	U.S. District Court for the Southern District of Florida
Presiding Judge:	Roy K Altman
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 0271 Patent Infringement
Jury Demanded By:	None

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Docket Report

This docket was last retrieved on July 16, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
July 16, 2026	Filing 46 FORM AO 120 SENT TO DIRECTOR OF U.S. PATENT AND TRADEMARK. (Copy of AO Form and Order sent) (Attachments: #1 Order) (ebz)
July 16, 2026	Filing 45 ORDER OF CONSOLIDATION. Case Number 26-cv-61712-RKA is hereby CONSOLIDATED into Case Number 26-cv-60696-RKA. Case Number

Date Filed	Document Text
6	26-cv-61712-RKA shall be administratively CLOSED. Any pending motions in Case Number 26-cv-61712-RKA are DENIED as moot. Signed by Judge Roy K. Altman on 7/16/2026. See attached document for full details. (ebz)
July 16, 2026	Cases associated. (ebz)
July 14, 2026	Filing 44 NOTICE of Attorney Appearance by Stephen Richard Auten on behalf of TRANSPIRE BIO INC.. Attorney Stephen Richard Auten added to party TRANSPIRE BIO INC.(pty:cc), Attorney Stephen Richard Auten added to party TRANSPIRE BIO INC.(pty:dft). (Auten, Stephen)
July 14, 2026	Filing 43 PAPERLESS ORDER GRANTING the [37, 38, 39] Motions to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorneys: Alex M. Matthews, Briana D. Long, and Michael K. Nutter. We DENY the [36, 40] Motions to Appear Pro Hac Vice for noncompliance with Local Rule 4(b) because Attorneys Aaron M. Johnson and Jaimin H. Shah have filed more than three motions to appear pro hac vice within a 365-day period. Signed by Judge Roy K. Altman on 7/14/2026. (skl)
July 13, 2026	Filing 42 Certificate of Other Affiliates/Corporate Disclosure Statement by TRANSPIRE BIO INC. identifying Corporate Parent Smoore International Holdings Limited, Corporate Parent TranspireBio Technology Limited f/k/a Smoore MedicAir Technology Limited (BVI), Corporate Parent TranspireBio Holding Limited f/k/a Smoore MedicAir Holding Limited (Cayman) for TRANSPIRE BIO INC., TRANSPIRE BIO INC. (Pruss, Lorenz)
July 13, 2026	Filing 41 ANSWER and Affirmative Defenses to Complaint , COUNTERCLAIM against All Plaintiffs by TRANSPIRE BIO INC.. (Pruss, Lorenz)
July 13, 2026	Filing 40 MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Jaimin H. Shah. Filing Fee \$ 250.00 Receipt # AFLSDC-19746902 by TRANSPIRE BIO INC.. Responses due by 7/27/2026. (Attachments: #1 Certification, #2 Text of Proposed Order)(Pruss, Lorenz)
July 13, 2026	Filing 39 MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Michael K. Nutter. Filing Fee \$ 250.00 Receipt # AFLSDC-19746851 by TRANSPIRE BIO INC.. Responses due by 7/27/2026. (Attachments: #1 Certification, #2 Text of Proposed Order)(Pruss, Lorenz)

Date Filed	Document Text
July 13, 2026	Filing 38 MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Alex M. Matthews. Filing Fee \$ 250.00 Receipt # AFLSDC-19746808 by TRANSPIRE BIO INC.. Responses due by 7/27/2026. (Attachments: #1 Certification, #2 Text of Proposed Order)(Pruss, Lorenz)
July 13, 2026	Filing 37 MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Briana D. Long. Filing Fee \$ 250.00 Receipt # AFLSDC-19746796 by TRANSPIRE BIO INC.. Responses due by 7/27/2026. (Attachments: #1 Certification, #2 Text of Proposed Order)(Pruss, Lorenz)
July 13, 2026	Filing 36 MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Aaron M. Johnson. Filing Fee \$ 250.00 Receipt # AFLSDC-19746671 by TRANSPIRE BIO INC.. Responses due by 7/27/2026. (Attachments: #1 Certification, #2 Text of Proposed Order)(Pruss, Lorenz)
July 13, 2026	Filing 35 NOTICE of Attorney Appearance by Lorenz Michel Pruss on behalf of TRANSPIRE BIO INC.. Attorney Lorenz Michel Pruss added to party TRANSPIRE BIO INC.(pty:dft). (Pruss, Lorenz)
June 30, 2026	Filing 34 WAIVER OF SERVICE Returned Executed by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. All Defendants. (Woods, Michael)
June 30, 2026	Filing 33 PAPERLESS ORDER granting #21 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) John W Murphy. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 32 PAPERLESS ORDER granting #20 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Lance M Peterzell. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 31 PAPERLESS ORDER granting #19 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Bansri R Patel. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)

Date Filed	Document Text
June 30, 2026	Filing 30 PAPERLESS ORDER granting #18 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Stephanie M Zielinski. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 29 PAPERLESS ORDER granting #17 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Laura Macro. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 28 PAPERLESS ORDER granting #16 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Lisa J. Pirozzolo. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 27 PAPERLESS ORDER granting #15 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) James Lyons. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 26 PAPERLESS ORDER granting #14 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Christopher Noyes. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 25 PAPERLESS ORDER granting #13 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Lauren E. Matlock-Colangelo. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30, 2026	Filing 24 PAPERLESS ORDER granting #12 Motion to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Robert Gunther. Signed by Judge Roy K. Altman on 6/30/2026. (pbe)
June 30,	Filing 23 PAPERLESS ORDER granting #11 Motion to Appear Pro Hac

Date Filed	Document Text
2026	Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Attorney(s) Gabriel Rosanio. Signed by Judge Roy K. Altman on 6/30/2026. (pbe) Modified text on 6/30/2026 (pc).
June 29, 2026	Filing 22 ORDER OF TRANSFER to Judge Roy K. Altman for all further proceedings, accepted and signed on 6/27/2026. Judge Melissa Damian no longer assigned to case. Signed by Judge Melissa Damian on 6/25/2026. See attached document for full details. (ebz)
June 18, 2026	Filing 21 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for John W Murphy. Filing Fee \$ 250.00 Receipt # AFLSDC-19666852 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/2/2026. (Raymond, Mark)
June 18, 2026	Filing 20 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Lance M Peterzell. Filing Fee \$ 250.00 Receipt # AFLSDC-19666819 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/2/2026. (Raymond, Mark)
June 18, 2026	Filing 19 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Bansri R Patel. Filing Fee \$ 250.00 Receipt # AFLSDC-19666804 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/2/2026. (Raymond, Mark)
June 18, 2026	Filing 18 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Stephanie M Zielinski. Filing Fee \$ 250.00 Receipt # AFLSDC-19666786 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/2/2026. (Raymond, Mark)
June 18, 2026	Filing 17 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Laura Macro. Filing Fee \$ 250.00 Receipt # AFLSDC-19666774 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/2/2026. (Raymond, Mark)
June 18, 2026	Filing 16 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Lisa J Pirozzolo. Filing Fee \$ 250.00 Receipt # AFLSDC-19666756 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/2/2026. (Raymond, Mark)

Date Filed	Document Text
June 17, 2026	Filing 15 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for James Lyons. Filing Fee \$ 250.00 Receipt # AFLSDC-19664860 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/1/2026. (Raymond, Mark)
June 17, 2026	Filing 14 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Christopher Noyes. Filing Fee \$ 250.00 Receipt # AFLSDC-19664855 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/1/2026. (Raymond, Mark)
June 17, 2026	Filing 13 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Lauren E. Matlock-Colangelo. Filing Fee \$ 250.00 Receipt # AFLSDC-19664837 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/1/2026. (Raymond, Mark)
June 17, 2026	Filing 12 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Robert Gunther. Filing Fee \$ 250.00 Receipt # AFLSDC-19664820 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/1/2026. (Raymond, Mark)
June 17, 2026	Filing 11 Plaintiff's MOTION to Appear Pro Hac Vice, Consent to Designation, and Request to Electronically Receive Notices of Electronic Filing for Gabriel Rosario. Filing Fee \$ 250.00 Receipt # AFLSDC-19664796 by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. Responses due by 7/1/2026. (Raymond, Mark)
June 17, 2026	Filing 10 Bar Letter re: Admissions sent to attorney Robert J. Gunther, Jr.; Christopher R. Noyes; Laura Macro; Gabriel Rosanio; Lauren E. Matlock-Colangelo; Lance M. Peterzell; Stephanie M. Zielinski; Lisa J. Pirozzolo; James M. Lyons; Bansri R. Patel; Tammy Terry, mailing date June 17, 2026, (pt)
June 17, 2026	Filing 9 Plaintiff's Certificate of Other Affiliates/Corporate Disclosure Statement by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC identifying Other Affiliate GlaxoSmithKline Finance plc, Other Affiliate GSK Finance (No 2) Limited, Other Affiliate GlaxoSmithKline Holdings Limited, Other Affiliate GlaxoSmithKline Holdings (Americas) Inc., Other Affiliate Smoore International Holdings Limited, Other Affiliate GSK plc, Other Affiliate GlaxoSmithKline Intellectual Property Holdings Limited, Other Affiliate GlaxoSmithKline Intellectual Property Management Limited, Other Affiliate TranspireBio Technology Limited (BVI), Other Affiliate TranspireBio Holding Limited (Cayman) for GLAXOSMITHKLINE INTELLECTUAL PROPERTY

Date Filed	Document Text
	DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC (Raymond, Mark)
June 17, 2026	Filing 8 Summons Issued as to TRANSPIRE BIO INC.. (ebz)
June 17, 2026	Filing 7 Clerk's Notice to Filer re #5 Certificate of Other Affiliates/Corporate Disclosure Statement,. Other Affiliates/Corporate Parents Not Entered; ERROR - The Filer failed to enter all Other Affiliates/Corporate Parents from the Certificate of Other Affiliates/Corporate Disclosure Statement. Filer is instructed to refile their Certificate of Other Affiliates/Corporate Disclosure Statement and enter the missing Other Affiliates/Corp Parents. Note - Other Affiliates/Corporate Parents do not appear on the docket sheet. (ebz)
June 17, 2026	Filing 6 Notice of Pending, Refiled, Related or Similar Actions by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC (Raymond, Mark)
June 17, 2026	Filing 5 Plaintiff's Certificate of Other Affiliates/Corporate Disclosure Statement by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC identifying Corporate Parent Glaxo Group Limited, Other Affiliate GSK plc for GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC (Raymond, Mark)
June 17, 2026	Filing 4 NOTICE of Filing Proposed Summons(es) by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC re #1 Complaint,, filed by GlaxoSmithKline LLC, GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited (Raymond, Mark)
June 17, 2026	Filing 3 FORM AO 120 SENT TO DIRECTOR OF U.S. PATENT AND TRADEMARK (kpe)
June 16, 2026	Filing 2 Clerks Notice of Judge Assignment to Judge Melissa Damian. Pursuant to 28 USC 636(c), the parties are hereby notified that the U.S. Magistrate Judge Jared M. Strauss is available to handle any or all proceedings in this case. If agreed, parties should complete and file the Consent form found on our website. It is not necessary to file a document indicating lack of consent. (kpe)

Date Filed	Document Text
June 16, 2026	Filing 1 COMPLAINT for Patent Infringement against TRANSPIRE BIO INC.. Filing fees \$ 405.00 receipt number AFLSDC-19660269, filed by GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, Glaxo Group Limited, GlaxoSmithKline LLC. (Attachments: #1 Civil Cover Sheet Civil Cover Sheet, #2 Exhibit Exhibit A, #3 Exhibit Exhibit B, #4 Exhibit Exhibit C, #5 Exhibit Exhibit D, #6 Exhibit Exhibit E, #7 Exhibit Exhibit F, #8 Exhibit Exhibit G, #9 Exhibit Exhibit H, #10 Exhibit Exhibit I, #11 Exhibit Exhibit J, #12 Exhibit Exhibit K)(Raymond, Mark)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	GlaxoSmithKline Intellectual Property Development Limited (England and Wales), GlaxoSmithKline LLC (Delaware), and Glaxo Group Limited (England and Wales)
Defendant:	Transpire Bio Inc. (Florida)
Plaintiff's Counsel:	Nelson Mullins Riley & Scarborough LLP
Case Identification:	0:26-cv-61712 , S.D. Fla., 06/16/2026
Venue Allegations:	Venue is alleged to be proper as Defendant Transpire is a Florida corporation that resides in the judicial district.
Core Dispute:	Plaintiff alleges that Defendant's filing of an Abbreviated New Drug Application (ANDA) for a generic version of the asthma and COPD treatment TRELEGY ELLIPTA constitutes an act of infringement of four patents covering both the drug compositions and the dry-powder inhaler device technology.
Technical Context:	The lawsuit involves drug-device combination products in the respiratory medicine market, specifically dry-powder inhalers used to deliver multiple active pharmaceutical ingredients for treating asthma and Chronic Obstructive Pulmonary Disease (COPD).
Key Procedural History:	This action was filed under the Hatch-Waxman Act following Defendant's notice letter regarding its ANDA submission, triggering an automatic 30-month stay on FDA approval of the generic product. The asserted patents are listed in the FDA's Orange Book as covering Plaintiff's TRELEGY ELLIPTA product. The complaint also references prior patent litigation between the parties involving different ANDA filings.

Case Timeline	
Date	Event
2005-12-12	Earliest Priority Date for '281 Patent
2005-07-28	Earliest Priority Date for '242 Patent

Date	Event
2009-12-01	Earliest Priority Date for '726 Patent and '986 Patent
2013-09-17	'281 Patent Issued
2014-06-10	'242 Patent Issued
2017-09-05	'726 Patent Issued
2017-09-18	FDA approves TRELEGY ELLIPTA 100/62.5/25 mcg for COPD treatment
2020-09-09	FDA approves TRELEGY ELLIPTA 100/62.5/25 mcg and 200/62.5/25 mcg for asthma treatment
2025-08-26	'986 Patent Issued
2025-11-21	Counterclaim filed in prior litigation (Case 0:25-cv-61939)
2026-03-06	Separate action filed against Transpire (Case 0:26-cv-60696)
2026-05-07	Defendant's Notice Letter sent to Plaintiff
2026-05-11	Counterclaim filed in prior litigation (Case 0:26-cv-60696)
2026-06-16	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,534,281 - "Manifold For Use In Medicament Dispenser"

Issued September 17, 2013 ('281 Patent)

The Invention Explained

Problem Addressed: The patent describes the challenge of ensuring efficient and uniform delivery of dry powder medicaments, particularly for combination therapies using multiple blister packs, where achieving a high Fine Particle Fraction (FPF) is critical for therapeutic efficacy ['281 Patent, col. 1:16-28](#)

The Patented Solution: The invention is a manifold for a dry powder inhaler that uses a specific airflow geometry to improve drug delivery. It splits incoming air into two paths: a primary path that flows through the open drug blister to entrain the powder, and a secondary "bleed" path that bypasses the blister and injects "bleed airflow" directly into the chamber to "disruptively impact the airflow that transports the entrained medicament powder" ['281 Patent, abstract](#) ['281 Patent, col. 6:5-24](#) This turbulence is intended to de-agglomerate the drug particles.

Technical Importance: This manifold design provided a mechanical means to improve the aerosolization of combination dry powder therapies, potentially increasing the amount of respirable drug delivered to the lungs from a simple, breath-actuated device.

Key Claims at a Glance

- The complaint asserts at least independent claim 1 **Compl. ¶46**
- The essential elements of claim 1 include:
 - A manifold body for a medicament dispenser.
 - A "chimney" with a single inlet and plural exits to direct airflow.
 - A "chamber" with plural inlets and a single exit.
 - Plural pairings of chimney exits and chamber inlets, each associated with a different open blister pocket.
 - A side-by-side arrangement of each chimney exit and chamber inlet to direct airflow through the blister pockets to entrain the powder.
 - "one or more bleed holes" between the chimney and the chamber, allowing "bleed airflow" to be directed into the chamber to "disruptively impact the airflow that transports the entrained medicament powder."
- The complaint reserves the right to assert other claims **Compl. ¶46**

U.S. Patent No. 8,746,242 - "Medicament Dispenser"

Issued June 10, 2014 ('242 Patent)

The Invention Explained

- **Problem Addressed:** The patent addresses the risk of accidental dose actuation in multi-dose inhalers that use a movable mouthpiece cover. Users may wish to open the cover for inspection or cleaning without dispensing a dose, which could lead to wasted medication and incorrect patient dosing **'242 Patent, col. 1:44-53**
- **The Patented Solution:** The invention is a dispenser with a cover that moves sequentially through three positions: 1) covered, 2) part-uncovered, and 3) uncovered. The dispensing mechanism is coupled to the cover such that moving from the first to the second position does **not** actuate a dose, but further movement from the second to the third position **does** result in actuation **'242 Patent, abstract** **'242 Patent, col. 2:22-34**
- **Technical Importance:** This design introduces a safety feature into the user interface of a dry powder inhaler, preventing inadvertent dose wastage while still allowing the convenience of an integrated mouthpiece cover.

Key Claims at a Glance

- The complaint asserts at least independent claim 1 **Compl. ¶63**
- The essential elements of claim 1 include:
 - A medicament dispenser for use with a carrier holding multiple distinct medicament portions.
 - An actuatable dispensing mechanism.
 - A mouthpiece.
 - A movable cover for the mouthpiece with a three-position sequential movement (covered, part-uncovered, uncovered).

- The cover is coupled to the dispensing mechanism such that movement from position 1 to 2 does not cause actuation, but movement from position 2 to 3 does cause actuation.
- The complaint reserves the right to assert other claims [Compl. ¶63](#)

U.S. Patent No. 9,750,726 - "Combinations Of A Muscarinic Receptor Antagonist And A Beta-2 Adrenoreceptor Agonist"

Issued September 5, 2017 ('726 Patent)

□**Technology Synopsis:** This patent claims specific pharmaceutical combination products. It covers the combination of umeclidinium (a muscarinic receptor antagonist) and vilanterol (a beta-2 adrenoreceptor agonist), and a triple-therapy combination that also includes fluticasone furoate, formulated as a dry powder for once-daily, simultaneous administration for treating respiratory diseases like asthma and COPD ['726 Patent, abstract](#) ['726 Patent, col. 5:25-32](#)

□**Asserted Claims:** At least claims 1 and 8 [Compl. ¶79](#)

□**Accused Features:** The accused generic product is alleged to be a pharmaceutical combination product containing umeclidinium bromide, vilanterol trifenate, and fluticasone furoate, in the form of a dry powder for once-daily, simultaneous administration, which allegedly infringes the claimed compositions [Compl. ¶¶83-90](#)

U.S. Patent No. 12,396,986 - "Combinations Of A Muscarinic Receptor Antagonist And A B-2 Adrenoreceptor Agonist"

Issued August 26, 2025 ('986 Patent)

□**Technology Synopsis:** This patent, related to the '726 patent, claims pharmaceutical combination products comprising specific chemical compounds. The claims cover a combination of "Compound (I)" (a genus including umeclidinium) and "Compound (II)" (vilanterol), formulated as a dry powder for once-daily, simultaneous administration ['986 Patent, abstract](#) The complaint provides a chemical structure diagram of 'Compound (I)' to visually define the umeclidinium compound at issue [Compl. p. 24](#)

□**Asserted Claims:** At least claims 1, 2, 3, 5, and 14 [Compl. ¶99](#)

□**Accused Features:** The accused generic product is alleged to contain the specific chemical compounds, dosages, and administration forms (dry powder for simultaneous, once-daily use) recited in the claims, including umeclidinium bromide as "Compound (I)" and vilanterol trifenate as "Compound (II)" [Compl. ¶¶103-107](#) [Compl. ¶112](#) [Compl. ¶122](#)

III. The Accused Instrumentality

Product Identification

The accused instrumentality is Defendant Transpire's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg, which is the subject of ANDA No. 221261 filed with the FDA [Compl. ¶3](#)

Functionality and Market Context

The product is a dry powder formulation for oral inhalation containing three active ingredients: 200 mcg fluticasone furoate, 62.5 mcg umeclidinium bromide, and 25 mcg vilanterol trifenate

Compl. ¶39 It is intended for the maintenance treatment of asthma and is designed to be bioequivalent to GSK's branded TRELEGY ELLIPTA product **Compl. ¶40** The complaint alleges the product will be used in an inhaler device that constitutes a medicament dispenser **Compl. ¶48** **Compl. ¶65** The filing of the ANDA signifies Defendant's intent to market this product as a lower-cost generic alternative upon receiving FDA approval, which would directly compete with Plaintiff's product (Compl. ¶¶3; **Compl. ¶14**).

IV. Analysis of Infringement Allegations

'281 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A manifold for use in a medicament dispenser device for the delivery of medicament powder from an open blister pocket of each of plural blister packs...	Defendant's proposed generic product allegedly has a manifold for use with a dispenser device delivering powder from plural blister packs.	¶50	col. 1:6-15
said body defining a chimney having only a single chimney inlet and plural chimney exits...	The manifold of the accused product is alleged to have a body defining a chimney with a single inlet and plural exits.	¶52	col. 3:32-35
the body further defining a chamber having plural chamber inlets and a chamber exit...	The manifold of the accused product is alleged to have a body defining a chamber with plural inlets and an exit.	¶53	col. 3:36-37
wherein the chimney exits and chamber inlets are arranged to form plural pairings... each said pairing in use associated with an open blister pocket of a different one of said plural blister packs;	The accused product's manifold is alleged to have chimney exits and chamber inlets arranged in plural pairings, each associated with a different blister pack.	¶54	col. 3:62-67
wherein the chimney exit and chamber inlet of the plural pairings lie side-by-side each other... to entrain said medicament powder... and wherein one or more bleed holes are provided between the chimney	The accused product's manifold is alleged to have side-by-side chimney exits and chamber inlets and one or more bleed holes between the chimney and	¶55	col. 6:5-10

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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and the chamber such that bleed airflow is able to be directed into the chamber to disruptively impact the airflow that transports the entrained medicament powder.	chamber that direct bleed airflow to disruptively impact the airflow transporting the powder.		
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'242 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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A medicament dispenser for use with at least one medicament carrier carrying multiple distinct medicament portions...	Defendant's proposed generic product allegedly comprises a medicament dispenser for use with a carrier holding multiple distinct medicaments.	¶67	col. 2:6-9
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(a) a dispensing mechanism actuatable for dispensing the distinct medicament portions...	The accused dispenser is alleged to have a dispensing mechanism that can be actuated to dispense the medicaments.	¶68	col. 2:10-12
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(b) a mouthpiece; and	The accused dispenser is alleged to have a mouthpiece.	¶69	col. 2:13
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(c) a cover for said mouthpiece, said cover being movably mounted to the dispenser for sequential movement from a first position... to a second position... to a third position...	The accused dispenser is alleged to have a movable cover for the mouthpiece that moves sequentially through first (covered), second (part-uncovered), and third (uncovered) positions.	¶70	col. 2:14-21
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wherein said cover is adapted to couple with said dispensing mechanism such that movement of the cover from the first position to the second position does not result in actuation... but any further	The accused dispenser's cover is alleged to be coupled to the dispensing mechanism such that actuation only occurs on movement from the second to the third	¶71	col. 2:22-28
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Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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movement of the cover from the second position to the third position results in actuation... position, not from the first to the second.

Identified Points of Contention

- **Structural and Functional Equivalence (Device Patents):** For both the '281 and '242 patents, the central dispute will likely involve a detailed comparison of the accused generic inhaler's physical structure and mechanism of action against the specific claim limitations.
 - For the '281 Patent, a key question is whether the accused device's manifold contains "bleed holes" that perform the claimed function of "disruptively impact[ing] the airflow." This raises a technical question of whether any air passages in the accused device meet this specific functional requirement, or if they serve a different purpose.
 - For the '242 Patent, a point of contention may be the definition of the "second position, in which said mouthpiece is part-uncovered." The infringement analysis will turn on whether the accused device's cover operates with the claimed three-position, selective-actuation sequence, raising questions about how the intermediate state of the accused device compares to the claimed "part-uncovered" state.
- **Claim Scope (Composition Patents):** For the '726 and '986 patents, which claim specific chemical combinations and formulations, the analysis will focus on whether the defendant's ANDA product literally meets each limitation. Potential points of contention could arise over the interpretation of terms like "about" with respect to dosages (e.g., "about 62.5 mcg/dose") and whether the specific salts used in the generic product fall within the claimed scope (e.g., "umeclidinium bromide" as an embodiment of "Compound (I)").

V. Key Claim Terms for Construction

'281 Patent, Claim 1

- **The Term:** "to disruptively impact the airflow"
- **Context and Importance:** This term is functional and defines the required purpose of the "bleed airflow." The infringement analysis will depend on whether the airflow in the accused device has a "disruptive" effect as claimed, a term that is not explicitly defined by a simple structure. Practitioners may focus on this term because its interpretation will determine whether any secondary air channel in the accused device, regardless of its primary purpose, can be said to meet this functional limitation.
- **Intrinsic Evidence for Interpretation:**
 - **Evidence for a Broader Interpretation:** The specification suggests that the bleed airflow itself, by creating "regions of differential force," promotes the desired powder break up, which could support an argument that any introduction of a secondary airstream that causes turbulence is "disruptive" '281 Patent, col. 6:15-24

❑ **Evidence for a Narrower Interpretation:** The patent states the purpose of the disruptive impact is to "promote the break up (e.g. to de-aggregate or de-agglomerate) of the entrained medicament powder" '281 Patent, col. 6:15-18 A defendant may argue this requires a specific, measurable effect on powder de-agglomeration, not just general turbulence.

'242 Patent, Claim 1

❑ **The Term:** "a second position, in which said mouthpiece is part-uncovered"

❑ **Context and Importance:** This term defines the crucial intermediate state of the cover that acts as a gate for actuation. The case may turn on whether the accused device has a stable, intermediate position that can be considered "part-uncovered" but not yet actuating, or if its opening mechanism is a continuous motion without such a distinct, non-actuating intermediate state.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The claim language itself does not specify a degree of "part-uncovered," which could support an argument that any position between fully closed and fully open qualifies, as long as it does not trigger actuation.

❑ **Evidence for a Narrower Interpretation:** The figures, such as Figures 3b and 4b, depict a specific state where the mouthpiece is partially, but not fully, revealed '242 Patent, Fig. 3b '242 Patent, Fig. 4b A party could argue these embodiments define the required scope of "part-uncovered" as a distinct, stable position where the device can rest before the final, actuating movement.

VI. Other Allegations

Indirect Infringement

For all four asserted patents, the complaint alleges both induced and contributory infringement. The allegations are based on Defendant's alleged knowledge of the patents and its intention for the proposed generic product and its labeling to be used in an infringing manner. The complaint asserts that the product is "especially made or adapted for use in infringing" the patents and is "not suitable for any substantial noninfringing use" Compl. ¶157 Compl. ¶73 Compl. ¶93 Compl. ¶129

Willful Infringement

The complaint alleges willful infringement for all four patents. The basis for this allegation is the claim that Defendant had "actual and constructive knowledge" of the patents prior to filing its ANDA and was aware that the filing itself constituted an act of infringement Compl. ¶156 Compl. ¶60 Compl. ¶72 Compl. ¶76 Compl. ¶92 Compl. ¶96 Compl. ¶128 Compl. ¶132

VII. Analyst's Conclusion: Key Questions for the Case

This case presents a classic Hatch-Waxman dispute involving both drug-device and composition-of-matter patents. The outcome will likely depend on the court's resolution of the following central questions:

1.A core issue will be one of **structural and functional infringement:** For the device patents ('281 and '242), does the defendant's proposed generic inhaler, which must be bioequivalent to the branded product, also incorporate the specific mechanical features recited in the claims? This includes the '281 patent's "bleed holes" that "disruptively impact" airflow and the '242 patent's three-position, selective-actuation cover mechanism.

2.A second key question will be one of **literal claim scope:** For the composition patents ('726 and '986), does the defendant's formulation-including the precise chemical compounds, their salt forms, specific dosages, and delivery as a dry powder for simultaneous administration-fall squarely within the literal boundaries of the asserted claims?

3.A final evidentiary question will be one of **knowledge and intent:** Should direct or indirect infringement be found, the court will need to assess the evidence presented regarding the defendant's alleged pre-suit knowledge of the patents to determine whether the infringement was willful, which could expose the defendant to enhanced damages.

Case 0:26-cv-61712-XXXX Document 1 Entered on FLSD Docket 06/16/2026 Page 1 of 35 UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF FLORIDA Civil Action No. GLAXOSMITHKLINE INTELLECTUAL PROPERTY DEVELOPMENT LIMITED, GLAXOSMITHKLINE LLC, and GLAXO GROUP LIMITED, Plaintiffs, v. TRANSPIRE BIO INC. Defendant.

COMPLAINT FOR PATENT INFRINGEMENT Plaintiffs GlaxoSmithKline Intellectual Property Development Limited ("GSK IP"), GlaxoSmithKline LLC ("GSK LLC"), and Glaxo Group Limited ("Glaxo Group," and collectively, "GSK") bring this Complaint for Patent Infringement against Defendant Transpire Bio Inc. ("Transpire" or "Defendant"), and allege as follows: NATURE OF THE ACTION 1. This is an action for infringement of GSK's valuable patent rights relating to U.S. Patent Nos. 8,534,281 (the "'281 Patent"), 8,746,242 (the "'242 Patent"), 9,750,726 (the "'726 Patent"), and 12,396,986 (the "'986 Patent," and collectively, "the Asserted Patents"), arising under the patent laws of the United States, Title 35, United States Code, 35 U.S.C. § 100, et seq. 2. GSK's TRELEGY ELLIPTA drug product is a fluticasone furoate, umeclidinium, and vilanterol inhalation powder. GSK'S "TRELEGY ELLIPTA 200/62.5/25 mcg" is indicated for the maintenance treatment of asthma in patients aged 18 years and older and includes 200 mcg

- 1 - Case 0:26-cv-61712-XXXX Document 1 Entered on FLSD Docket 06/16/2026 Page 2 of 35 fluticasone furoate, 62.5 mcg umeclidinium, and 25 mcg vilanterol. GSK's TRELEGY ELLIPTA 200/62.5/25 mcg product is protected in the United States by the Asserted Patents.

1.

This action relates to Abbreviated New Drug Application ("ANDA") No. 221261 filed or caused to be filed by Defendant with the U.S. Food and Drug Administration ("FDA") and seeking approval to market a generic version of GSK's TRELEGY ELLIPTA 200/62.5/25 mcg drug product. PARTIES 4. Plaintiff GSK IP is a corporation organized and existing under the laws of England and Wales, with its principal place of business at GSK Medicines Research Centre, Gunnels Wood Road, Stevenage SG1 2NY, United Kingdom. GSK IP is the holder of approved

New Drug Application (“NDA”) No. 209482. 5. Plaintiff GSK LLC is a corporation organized and existing under the laws of Delaware, having its principal place of business at Corporation Service Company, 251 Little Falls Drive, Wilmington, Delaware 19808. 6. Plaintiff Glaxo Group is a corporation organized and existing under the laws of England and Wales, having its principal place of business at GSK Medicines Research Centre, Gunnels Wood Road, Stevenage SG1 2NY, United Kingdom. Glaxo Group is the owner by assignment of the Asserted Patents. 7. Upon information and belief, Defendant Transpire is a corporation organized and existing under the laws of Florida, having its principal place of business at 1300 Concord Terrace, Suite 310, Sunrise, Florida 33323. On information and belief, Transpire manufactures and sells generic versions of branded products for the United States market, including in this judicial district.

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1.

Upon information and belief, Defendant prepared and submitted ANDA No. 221261 to the FDA. 9. Upon information and belief, following any FDA approval of ANDA No. 221261, Defendant will make, use, offer to sell, and/or sell the proposed generic drug product that is the subject of ANDA No. 221261 throughout the United States, and/or import such generic drug product into the United States, including in this judicial district. JURISDICTION AND VENUE 10. This action arises under the patent laws of the United States, 35 U.S.C. § 100, et seq., and this Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331 and 1338(a). Venue is proper in this Court under 28 U.S.C. §§ 1391 and 1400(b). 11. Venue is proper in this district, pursuant to 28 U.S.C. §§ 1391 and 1400(b), because Transpire is incorporated in the State of Florida, resides in this judicial district, and committed a substantial portion of the acts giving rise to the claims in this district. 12. Based on the facts and causes alleged herein, this Court has personal jurisdiction over Defendant. This Court has personal jurisdiction over Transpire because Transpire is a Florida corporation that is headquartered in Florida. Upon information and belief, Transpire has engaged in a persistent course of conduct within Florida by directly manufacturing, marketing, distributing, and/or selling pharmaceutical products in Florida. 13. Upon information and belief, Defendant will manufacture, market, and/or sell within the United States the generic version of GSK’s TRELEGY ELLIPTA 200/62.5/25 mcg described in ANDA No. 221261 if approved by the FDA. If ANDA No. 221261 is approved, the generic version of GSK’s TRELEGY ELLIPTA 200/62.5/25 mcg charged with infringing the Asserted Patents would, upon information and belief, among other things, be marketed and

- 3 - Case 0:26-cv-61712-XXXX Document 1 Entered on FLSD Docket 06/16/2026 Page 4 of 35 distributed in Florida, prescribed by physicians practicing in Florida, dispensed by pharmacies located in Florida, and/or used by persons in Florida, all of which would have a substantial effect on Florida.
1. GSK enjoys sales in Florida of its TRELEGY ELLIPTA 200/62.5/25 mcg drug product, which practices the claims of the Asserted Patents. If the FDA approves ANDA No. 221261, Defendant’s manufacturing, marketing, and sales of its generic version of GSK’s TRELEGY ELLIPTA 200/62.5/25 mcg will cause GSK substantial injury in Florida.

2.

In addition, Transpire has previously submitted to the jurisdiction of this Court and has previously availed itself of this Court, including by asserting counterclaims in other civil actions initiated in this jurisdiction. For example, Transpire did not contest jurisdiction in Florida and has filed counterclaims in the actions stylized as Glaxo Group Ltd. v. Transpire Bio Inc., No. 0:25-cv-61939, Dkt. 34 (S.D. Fla. Nov. 21, 2025), and GlaxoSmithKline Intellectual Property Development Limited et al. v. Transpire Bio Inc., No. 0:26-cv-60696, Dkt. 30 (S.D. Fla. May 11, 2026). BACKGROUND 16. GSK IP holds NDA No. 209482 for TRELEGY ELLIPTA. TRELEGY ELLIPTA is a fluticasone furoate, umeclidinium, and vilanterol inhalation powder. “TRELEGY ELLIPTA 100/62.5/25 mcg” includes 100 mcg fluticasone furoate, 62.5 mcg umeclidinium, and 25 mcg vilanterol and was approved by the FDA for the maintenance treatment of patients with chronic obstructive pulmonary disease (“COPD”) on September 18, 2017. On September 9, 2020, TRELEGY ELLIPTA 100/62.5/25 was approved by the FDA for the maintenance treatment of asthma in patients aged 18 years and older. On the same day, the FDA also approved TRELEGY ELLIPTA 200/62.5/25 mcg for the maintenance treatment of asthma in patients aged 18 years and

- 4 - Case 0:26-cv-61712-XXXX Document 1 Entered on FLSD Docket 06/16/2026 Page 5 of 35 older. TRELEGY ELLIPTA 100/62.5/25 mcg and TRELEGY ELLIPTA 200/62.5/25 mcg were approved pursuant to NDA No. 209482.

1.

Pursuant to 21 U.S.C. § 355 and the attendant FDA regulations, the Asserted Patents have been listed in connection with TRELEGY ELLIPTA 200/62.5/25 in the FDA’s publication, Approved Drug Products with Therapeutic Equivalence Evaluations, which is referred to as the “Orange Book.” TRELEGY ELLIPTA 200/62.5/25, its use, and its formulation, practice one or more claims of the Asserted Patents. 18. On March 6, 2026, GSK filed a separate action against Transpire relating to ANDA No. 220811 which seeks approval to market a generic version of GSK’s TRELEGY ELLIPTA 100/62.5/25 mcg drug product. See GlaxoSmithKline Intellectual Property Development Limited et al. v. Transpire Bio Inc., No. 0:26-cv-60696, Dkt. 1 (S.D. Fla.). THE ’281 PATENT 19. Glaxo Group is the lawful owner by assignment of the ’281 Patent, entitled “Manifold For Use In Medicament Dispenser,” which was duly and legally issued by the U.S. Patent and Trademark Office on September 17, 2013. A true and correct copy of the ’281 Patent is attached hereto as Exhibit A. The claims of the ’281 Patent are valid and enforceable. 20. The ’281 Patent claims, inter alia, a manifold for use in a medicament dispenser device for the delivery of medicament powder from an open blister pocket of each of plural blister packs. See Ex. A at 35:33-39:15. 21. The ’281 Patent expires no earlier than March 8, 2030. 22. The ’281 Patent has an additional six-month pediatric extension that expires no earlier than September 8, 2030.

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1.

The claims of the ’281 Patent are generally directed to GSK’s innovations to develop a next generation, convenient, and easy to use dry powder inhaler that allows greater versatility in treatment options with single or multiple strip configurations that can hold distinct medicine formulations including combination therapies. See Ex. A at 35:33-39:15. 24. Glaxo Group, as the owner of the entire right, title, and interest in the ’281 Patent, possesses the right to sue for past,

present, and future infringement of the '281 Patent. THE '242 PATENT 25. Glaxo Group is the lawful owner by assignment of the '242 Patent, entitled "Medicament Dispenser," which was duly and legally issued by the U.S. Patent and Trademark Office on June 10, 2014. A true and correct copy of the '242 Patent is attached hereto as Exhibit B. The claims of the '242 Patent are valid and enforceable. 26. The '242 Patent claims, inter alia, a medicament dispenser for use with at least one medicament carrier carrying multiple distinct medicament portions. See Ex. B at 21:29-24:28. 27. The '242 Patent expires no earlier than October 11, 2030. 28. The '242 Patent has an additional six-month pediatric extension that expires no earlier than April 11, 2031. 29. The claims of the '242 Patent are generally directed to GSK's innovations to develop a next generation, convenient, and easy to use dry powder inhaler that allows greater versatility in treatment options with single or multiple strip configurations that can hold distinct medicine formulations including combination therapies. See Ex. B at 21:29-24:28. 30. Glaxo Group, as the owner of the entire right, title, and interest in the '242 Patent, possesses the right to sue for past, present, and future infringement of the '242 Patent.

- 6 - Case 0:26-cv-61712-XXXX Document 1 Entered on FLSD Docket 06/16/2026 Page 7 of 35 THE '726 PATENT

1. Glaxo Group is the lawful owner by assignment of the '726 Patent, entitled "Combinations Of A Muscarinic Receptor Antagonist And A Beta-2 Adrenoreceptor Agonist," which was duly and legally issued by the U.S. Patent and Trademark Office on September 5, 2017. A true and correct copy of the '726 Patent is attached hereto as Exhibit C. The claims of the '726 Patent are valid and enforceable.

2.

The '726 Patent claims, inter alia, pharmaceutical combination products including umeclidinium and vilanterol or umeclidinium, vilanterol, and fluticasone furoate. See Ex. C at 22:24-24:37. 33. The '726 Patent expires no earlier than November 29, 2030. 34. Glaxo Group, as the owner of the entire right, title, and interest in the '726 Patent, possesses the right to sue for past, present, and future infringement of the '726 Patent. THE '986 PATENT 35. Glaxo Group is the lawful owner by assignment of the '986 Patent, entitled "Combinations Of A Muscarinic Receptor Antagonist And A β -2 Adrenoreceptor Agonist," which was duly and legally issued by the U.S. Patent and Trademark Office on August 26, 2025. A true and correct copy of the '986 Patent is attached hereto as Exhibit D. The claims of the '986 Patent are valid and enforceable. 36. The '986 Patent claims, inter alia, pharmaceutical combination products including umeclidinium and vilanterol or umeclidinium, vilanterol, and fluticasone furoate. See Ex. D at 18:28-24:17. 37. The '986 Patent expires no earlier than November 29, 2030.

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1. Glaxo Group, as the owner of the entire right, title, and interest in the '986 Patent, possesses the right to sue for past, present, and future infringement of the '986 Patent. INFRINGEMENT BY DEFENDANT

2.

In a letter dated May 7, 2026 ("Defendant's Notice Letter"), Transpire notified GSK that it had submitted ANDA No. 221261 to the FDA under Section 505(j) of the Federal Food, Drug, and

Cosmetic Act, see 21 U.S.C. § 355(j), seeking approval, prior to the expiration of the Asserted Patents, to engage in the commercial manufacture, use, offer for sale, sale, or importation of a proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate inhalation powder. 40. By filing ANDA No. 221261, and upon information and belief, Defendant has represented to the FDA that the components of its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. By filing ANDA No. 221261, and upon information and belief, Defendant has represented that its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg containing fluticasone furoate, umeclidinium bromide, and vilanterol trifenate is bioequivalent to TRELEGY ELLIPTA 200/62.5/25 mcg. 41. Defendant has committed an act of infringement, pursuant to 35 U.S.C. § 271(e)(2), by filing ANDA No. 221261 under 21 U.S.C. § 355(j) seeking approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of its proposed generic version

- 8 - Case 0:26-cv-61712-XXXX Document 1 Entered on FLSD Docket 06/16/2026 Page 9 of 35 of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate before the expiration of the Asserted Patents.

1. GSK is entitled under 35 U.S.C. § 271(e)(4) to full relief from Defendant's acts of infringement, including an Order by this Court ensuring that the effective date of any approval by the FDA of ANDA No. 221261, relating to Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg, shall not be earlier than the expiration of the Asserted Patents.
2. GSK filed its Complaint before the expiration of the forty-five-day period from the day after GSK received the Defendant's Notice Letter, which was dated May 7, 2026. Accordingly, GSK is entitled to a thirty-month stay under 21 U.S.C. § 355(j)(5)(B)(iii) and 21 C.F.R. § 314.107(b)(3). COUNT I (INFRINGEMENT OF THE '281 PATENT BY DEFENDANT) Each of the preceding paragraphs 1 through 43 is incorporated as if fully set forth

3.

herein. 45. Defendant's submission of ANDA No. 221261 to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg before the expiration of the '281 Patent constitutes infringement of one or more of the claims of the '281 Patent under 35 U.S.C. § 271(e)(2) (A). 46. Specifically, the composition of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is proposed to be made, used, and sold as described in Defendant's Notice Letter, will, if marketed and sold, infringe each and every limitation of one or more claims of the '281 Patent, including at least claim 1, literally or under the doctrine of equivalents.

1. Claim 1 of the '281 Patent recites: A manifold for use in a medicament dispenser device for the delivery of medicament powder from an open blister pocket of each of plural blister packs, the manifold comprising a body, said body defining a chimney having only a single chimney inlet and plural chimney exits for directing airflow from said chimney inlet to said chimney exits; the body further defining a chamber having plural chamber inlets and a chamber exit, wherein the chimney exits and chamber inlets are arranged to form plural pairings of chimney exit and chamber inlet, each said pairing in use associated with an open blister pocket of a different one of said plural blister packs; wherein the chimney exit and chamber inlet of the plural pairings lie side-by-side each other such that when said open blister pocket of the associated blister packs are positioned adjacent thereto said airflow is directed from chimney exit to chamber inlet via the associated open blister pockets to entrain said medicament powder and enable transport thereof in the airflow from the chamber inlet to said chamber exit, and wherein one or more bleed holes are provided between the chimney and the chamber such that bleed airflow is able to be directed into the chamber to disruptively impact the airflow that transports the entrained medicament powder. Ex. A at 35:33-59.

2. According to Defendant's Notice Letter, and upon information and belief, Defendant's generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will have the same route of administration and dosage form as TRELEGY ELLIPTA 200/62.5/25 mcg, which uses an inhaler device. Accordingly, on information and belief, Transpire's generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will use an inhaler device. For example, Transpire's website discloses delivery "platforms" including "dry-powder inhalers." Ex. E; see also Ex. F (depicting inhalers); Ex. G (same); Ex. H (same); Ex. I (same).

3. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will have the

same active ingredients as TRELEGY ELLIPTA 200/62.5/25 mcg. Thus, on information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will contain the following dry powder active ingredients: (1) fluticasone furoate; (2) umeclidinium bromide; and (3) vilanterol trifenate.

50. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has a manifold for use in a medicament dispenser device for the delivery of medicament powder from an open blister pocket of each of plural blister packs. See, e.g., Ex. I (depicting manufacture of medicament blister packs).

51. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has a manifold comprising a body.

52. Upon information and belief, Defendant's proposed generic version of TRELEGY

ELLIPTA 200/62.5/25 mcg has a manifold which further comprises a body defining a chimney having only a single chimney inlet and plural chimney exits for directing airflow from said chimney inlet to said chimney exits.

53. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has a manifold, where the body of the manifold further defines a chamber having plural chamber inlets and a chamber exit.

54. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has chimney exits and chamber inlets that are arranged to form plural pairings of chimney exit and chamber inlet, each said pairing in use associated with an open blister pocket of a different one of said plural blister packs.

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55. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has a manifold, wherein the chimney exit and chamber inlet of the plural pairings lie side-by-side each other such that when said open blister pocket of the associated blister packs are positioned adjacent thereto said airflow is directed from chimney exit to chamber inlet via the associated open blister pockets to entrain said medicament powder and enable transport thereof in the airflow from the chamber inlet to said chamber exit, and wherein one or more bleed holes are provided between the chimney and the chamber such that bleed airflow is able to be directed into the chamber to disruptively impact the airflow that transports the entrained medicament powder.

56. Upon information and belief, Defendant had actual and constructive knowledge of the '281 Patent before filing ANDA No. 221261, and was aware that the filing of ANDA No. 221261 with the FDA constituted an act of infringement of the '281 Patent.

57. Upon information and belief, Defendant knows that its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the proposed labeling for that product are especially made or adapted for use in infringing the '281 Patent, and that the proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the proposed labeling are not suitable for any substantial noninfringing use. Upon information and belief, Defendant plans and intends to infringe, and will induce and/or contribute to the infringement of, the '281 Patent, immediately and imminently upon FDA approval of ANDA No. 221261.

58. Upon FDA approval of ANDA No. 221261, Defendant will infringe the '281 Patent

by making, using, offering to sell, and selling its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg in the United States and/or importing such proposed generic drug product into

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the United States, and by actively inducing and contributing to infringement by others, in violation of 35 U.S.C. § 271(a)-(c), unless enjoined by the Court.

59.

If infringement of the '281 Patent by Defendant is not enjoined, GSK will suffer immediate, substantial, and irreparable harm for which there is no adequate remedy at law.

60.

Transpire's infringement of the '281 Patent is willful.

61.

COUNT II (INFRINGEMENT OF THE '242 PATENT BY DEFENDANT)

Each of the preceding paragraphs 1 through 43 is incorporated as if fully set forth herein.

62. Defendant's submission of ANDA No. 221261 to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg before the expiration of the '242 Patent constitutes infringement of one or more claims of the '242 Patent under 35 U.S.C. § 271(e)(2)(A).

63.

Specifically, the composition of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is proposed to be made, used, and sold as described in Defendant's Notice Letter, will, if marketed and sold, infringe each and every limitation of at least claim 1 of the '242 Patent. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a medicament dispenser for use with at least one medicament carrier carrying multiple distinct medicament portions, which will, if marketed and sold, infringe each and every limitation of one or more claims of the '242 Patent, including at least claim 1, literally or under the doctrine of equivalents.

64. Claim 1 of the '242 Patent recites:

A medicament dispenser for use with at least one medicament carrier carrying multiple distinct medicament portions, said medicament dispenser comprising

(a) a dispensing mechanism actuable for dispensing the distinct medicament portions carried by said at least one medicament carrier;

(b) a mouthpiece; and

(c) a cover for said mouthpiece, said cover being movably mounted to the dispenser for sequential movement from a first position, in which said mouthpiece is covered, to a second position, in which said mouthpiece is part-uncovered, to a third position in which said mouthpiece is uncovered;

wherein said cover is adapted to couple with said dispensing mechanism such that movement of the cover from the first position to the second position does not result in actuation of the dispensing mechanism, but any further movement of the cover from the second position to the third position results in actuation of the dispensing mechanism.

Ex. B at 21:29-48.

65. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will have the same route of administration and dosage form as TRELEGY ELLIPTA 200/62.5/25 mcg, which comprises an inhaler device. Accordingly, on information and belief, Transpire's generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will comprise an inhaler device that constitutes a medicament dispenser. For example, Transpire's website discloses delivery "platforms" including "dry-powder inhalers." Ex. E; see also Ex. F (depicting inhalers); Ex. G (same); Ex. H (same); Ex. I (same).

66. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will have the same active ingredients as TRELEGY ELLIPTA 200/62.5/25 mcg. Thus, on information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg will contain the following medicaments: (1) fluticasone furoate; (2) umeclidinium bromide; and (3) vilanterol trifenate.

67. According to Defendant's Notice Letter, and upon information and belief,

Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a medicament dispenser for use with at least one medicament carrier carrying multiple distinct medicament portions. See, e.g., Ex. I ("We have developed commercial scale, clinical-stage inhalation formulation technologies and delivery platforms that are fully customizable to different clinical applications."); id. ("Our inhalation technology platforms have wide applicability and can support small molecules, polypeptides, protein, oligonucleotides, biologics, and vaccines."); id. (depicting "Rollingstar™ dry powder inhaler").

68. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a medicament dispenser further comprising a dispensing mechanism actuable for dispensing the distinct medicament portions carried by said at least one medicament carrier. See, e.g., Ex. I.

69. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a medicament dispenser further comprising a mouthpiece. See, e.g., Ex. F (depicting inhalers); Ex. G (same); Ex. H (same); Ex. I (same).

70. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a medicament dispenser further comprising a cover for said mouthpiece, said cover being movably mounted to the dispenser for sequential movement from a first position, in which said mouthpiece is covered, to a second position, in which said mouthpiece is part-uncovered, to a third position in which said mouthpiece is uncovered. See, e.g., Ex. F (depicting inhalers); Ex. G (same); Ex. H (same); Ex. I (same).

71. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a medicament dispenser wherein the cover is adapted to

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couple with said dispensing mechanism such that movement of the cover from the first position to the second position does not result in actuation of the dispensing mechanism, but any further movement of the cover from the second position to the third position results in actuation of the dispensing mechanism. See, e.g., Ex. F (depicting inhalers); Ex. G (same); Ex. H (same); Ex. I (same).

72. Upon information and belief, Defendant had actual and constructive knowledge of the '242 Patent prior to filing ANDA No. 221261, and was aware that the filing of ANDA No. 221261 with the FDA constituted an act of infringement of the '242 Patent.

73. Upon information and belief, Defendant knows that its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the proposed labeling for that product are especially made or adapted for use in infringing the '242 Patent, and that the proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the proposed labeling for that product are not suitable for any substantial noninfringing use. Upon information and belief, Defendant plans and intends to infringe, and will induce and/or contribute to the infringement of, the '242 Patent, immediately and imminently upon FDA approval of ANDA No. 221261.

74. Upon FDA approval of ANDA No. 221261, Defendant will infringe the '242 Patent by making, using, offering to sell, and selling its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg in the United States and/or importing such proposed generic drug product into the United States, and by actively inducing and contributing to infringement by others, in violation of 35 U.S.C. § 271(a)-(c), unless enjoined by the Court.

75.

If infringement of the '242 Patent by Defendant is not enjoined, GSK will suffer immediate, substantial, and irreparable harm for which there is no adequate remedy at law.

76.

Transpire's infringement of the '242 Patent is willful.

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COUNT III (INFRINGEMENT OF THE '726 PATENT BY DEFENDANT)

77.

Each of the preceding paragraphs 1 through 43 is incorporated as if fully set forth herein.

78. Defendant's submission of ANDA No. 221261 to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate prior to the expiration of the '726 Patent constitutes infringement of one or more of the claims of the '726 Patent under 35 U.S.C. § 271(e)(2)(A).

79.

Specifically, the composition of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg

base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate and the way it is proposed to be made, used, and sold as described in Defendant's Notice Letter, will, if marketed and sold, infringe each and every limitation of one or more claims of the '726 Patent, including at least claims 1 and 8, either literally or under the doctrine of equivalents.

80. Claim 1 of the '726 Patent recites:

A pharmaceutical combination product comprising:

- a) 4-[hydroxy(diphenyl)methyl]-1-{2-[(phenylmethyl)oxy]ethyl}-1-azoniabicyclo[2.2.2]octane bromide in an amount of about 62.5 mcg/dose, in the form of a dry powder; and
- b) 4-[(1R)-2-[(6-{2-[(2,6-dichlorobenzyl)oxy]ethoxy}hexyl)amino]-1-hydroxyethyl]-2-(hydroxymethyl)phenol triphenylacetate, in an amount of about 25 mcg/dose, in the form of a dry powder,

wherein said pharmaceutical combination product is suitable for once-daily administration, and compounds a) and b) are presented in a form adapted for simultaneous administration.

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Ex. C at 22:24-36.

81. According to Defendant's Notice Letter, and upon information and belief, the components of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product"); Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent").

82. Upon information and belief, use of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate would infringe one or more claims of the '726 Patent, including at least claim 1, literally or under the doctrine of equivalents.

83. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is a pharmaceutical combination product. For example, according to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises a combination of fluticasone furoate, umeclidinium bromide, and vilanterol trifenate inhalation powder. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E ("abbreviated new drug application

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(ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product"). Defendant's website states that its ANDA "demonstrates Transpire Bio's strong capabilities in developing complex drug device combination products." Ex. E (emphasis added).

84. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises 4-[hydroxy(diphenyl)methyl]-1-{2-[(phenylmethyl)oxy]ethyl}-1-azoniabicyclo[2.2.2]octane bromide in an amount of about 62.5 mcg/dose, in the form of a dry powder. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product" (emphasis added)); id. (referencing "dry-powder inhalers"); Ex. I (depicting "Rollingstar™ dry powder inhaler").

85. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises 4-{{(1R)-2-[(6-{2-[(2,6-dichlorobenzyl)oxy]ethoxy}hexyl)amino]-1-hydroxyethyl}-2-(hydroxymethyl)phenol triphenylacetate in an amount of about 25 mcg/dose, in the form of a dry powder. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200

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mcg/62.5 mcg/25 mcg) product” (emphasis added)); id. (referencing “dry-powder inhalers”); Ex. I (depicting “Rollingstar™ dry powder inhaler”).

86. According to Defendant’s Notice Letter, and upon information and belief, Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is a combination product suitable for once-daily administration. See, e.g., Ex. E (describing ANDA No. 221261 as “demonstrat[ing] Transpire Bio’s strong capabilities in developing complex drug device combination products” (emphasis added)). Specifically, according to Defendant’s Notice Letter, and upon information and belief, Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has the same dosage and method of administration as TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E (“fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy®”); Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”). TRELEGY ELLIPTA 200/62.5/25 mcg is administered using a once per day administration. See, e.g., Ex. K at 1 (“Maintenance treatment of asthma: 1 actuation of TRELEGY ELLIPTA 100/62.5/25 mcg or TRELEGY ELLIPTA 200/62.5/25 mcg once daily administered by oral inhalation.” (emphasis added)).

87. According to Defendant’s Notice Letter, and upon information and belief, the compounds in Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg are presented in a form adapted for simultaneous administration. See, e.g., Ex. E (“fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy®”); Ex. I (depicting manufacture of medicament blister packs).

88. Claim 8 of the ’726 Patent recites: The product according to claim 1, further comprising 6 α ,9 α -difluoro-17 α -[(2-

furanylcarbonyl)oxy]-11 β -hydroxy-16 α -methyl-3-oxo-androsta-1,4-diene-17 β -carbothioic acid S-fluoromethyl ester (fluticasone furoate).

Ex. C at 22:66-23:2.

89. According to Defendant’s Notice Letter, and upon information and belief, the components of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is a combination product further comprising 6 α ,9 α -difluoro-17 α -[(2-furanylcarbonyl)oxy]-11 β -hydroxy-16 α -methyl-3-oxo-androsta-1,4-diene-17 β -carbothioic acid S-fluoromethyl ester

(fluticasone furoate). See, e.g., Ex. E (“abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product” (emphasis added)); Ex. E (describing ANDA No. 221261 as “demonstrat[ing] Transpire Bio’s strong capabilities in developing complex drug device combination products” (emphasis added)); Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”).

90. Upon information and belief, use of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate would infringe one or more claims of the ’726 Patent, including at least claim 8, literally or under the doctrine of equivalents.

91. According to Defendant’s Notice Letter, and upon information and belief, Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is proposed to be made, used and sold as described in Defendant’s Notice Letter, will, if marketed and sold, infringe each and every limitation of claim 1 of the ’726 Patent. See supra ¶¶ 80-87.

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92. Upon information and belief, Defendant had actual and constructive knowledge of the ’726 Patent prior to filing ANDA No. 221261 and was aware that the filing of ANDA No. 221261 with the FDA constituted an act of infringement of the ’726 Patent.

93. Upon information and belief, Defendant knows that its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate and the proposed labeling for that product are especially made or adapted for use in infringing the ’726 Patent, and that the proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate and the proposed labeling for that product are not suitable for any substantial noninfringing use. Upon information and belief, Defendant plans and intends to infringe, and will induce and/or contribute to the infringement of the ’726 Patent, immediately and imminently upon FDA approval of ANDA No. 221261.

94. Upon FDA approval of ANDA No. 221261, Defendant will infringe the '726 Patent by making, using, offering to sell, and selling its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate in the United States and/or importing such proposed generic drug product into the United States, and by actively inducing and contributing to infringement by others, in violation of 35 U.S.C. § 271(a)-(c), unless enjoined by the Court.

95.

If infringement of the '726 Patent by Defendant is not enjoined, GSK will suffer immediate, substantial, and irreparable harm for which there is no adequate remedy at law.

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96.

Transpire's infringement of the '726 Patent is willful.

COUNT IV (INFRINGEMENT OF THE '986 PATENT BY DEFENDANT)

97.

Each of the preceding paragraphs 1 through 43 is incorporated as if fully set forth herein.

98. Defendant's submission of ANDA No. 221261 to obtain approval to engage in the commercial manufacture, use, offer for sale, sale, or importation of its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate prior to the expiration of the '986 Patent constitutes infringement of one or more of the claims of the '986 Patent under 35 U.S.C. § 271(e)(2)(A).

99.

Specifically, the composition of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate and the way it is proposed to be made, used and sold as described in Defendant's Notice Letter, will, if marketed and sold, infringe each and every limitation of one or more claims of the '986 Patent, including at least claims 1, 2, 3, 5, and 14, either literally or under the doctrine of equivalents.

100. Claim 1 of the '986 Patent recites:

A pharmaceutical combination product comprising

a) a compound of the formula

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wherein X⁻ is a pharmaceutically acceptable anion wherein Compound (I) is in an amount of about 62.5 mcg/dose in the combination product, and is in the form of a dry powder; and

b) 4-[(1R)-2-[(6-{2-[(2,6-dichlorobenzyl)oxy]ethoxy}hexyl)amino]-1-

hydroxyethyl]-2-(hydroxymethyl)phenol, or a pharmaceutically acceptable salt thereof (Compound II),

wherein Compound (II) is in an amount of about 25 mcg/dose in the combination product, and is in the form of a dry powder,

wherein said pharmaceutical combination product is suitable for once daily administration, and

wherein compounds (a) and (b) are presented in a form adapted for simultaneous administration.

Ex. D at 18:28-65.

101. According to Defendant's Notice Letter, and upon information and belief, the components of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product"); Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation,

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umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent").

102. Upon information and belief, use of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent

vilanterol trifenate would infringe one or more claims of the '986 Patent, including at least claim 1, literally or under the doctrine of equivalents.

103. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is a pharmaceutical combination product. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E (describing ANDA No. 221261 as "demonstrat[ing] Transpire Bio's strong capabilities in developing complex drug device combination products" (emphasis added)).

104. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises Compound I in an amount of about 62.5 mcg/dose in the combination product, and in the form of a dry powder. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product" (emphasis added)); id. (referencing "dry-powder inhalers"); Ex. I (depicting "Rollingstar™ dry powder inhaler").

105. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg comprises Compound II in an amount of 25 mcg/dose in the

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combination product, and in the form of a dry powder. See, e.g., Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product" (emphasis added)); id. (referencing "dry-powder inhalers"); Ex. I (depicting "Rollingstar™ dry powder inhaler").

106. Upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is a pharmaceutical combination product suitable for once daily administration. See, e.g., Ex. E (describing ANDA No. 221261 as "demonstrat[ing] Transpire Bio's strong capabilities in developing complex drug device combination products" (emphasis added)). According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg has the same dosage and method of administration as TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E ("fluticasone

furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy®”). TRELEGY ELLIPTA 200/62.5/25 mcg is administered using a once per day administration. See, e.g., Ex. K at 1 (“Maintenance treatment of asthma: 1 actuation of TRELEGY ELLIPTA 100/62.5/25 mcg or TRELEGY ELLIPTA 200/62.5/25 mcg once daily administered by oral inhalation.”).

107. Upon information and belief, Compound I and Compound II in Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg are in a form adapted for simultaneous administration. See, e.g., Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”); Ex. E (“fluticasone furoate, umeclidinium, and vilanterol inhalation

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powder, a generic version of the high-strength Trelegy®”); Ex. I (depicting manufacture of medicament blister packs).

108. Claim 2 of the ’986 Patent recites:

The combination product according to claim 1, wherein for Compound (I) the pharmaceutically acceptable anion is selected from the group consisting of chloride, bromide, iodide, hydroxide, sulfate, nitrate, phosphate, acetate, trifluoroacetate, fumarate, citrate, tartrate, oxalate, succinate, mandelate, methanesulfonate or p-toluenesulfonate.

Ex. D at 18:66-19:4.

109. According to Defendant’s Notice Letter, and upon information and belief, the components of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E (“abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product”); Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”).

110. Upon information and belief, use of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg

base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate would infringe one or more claims of the '986 Patent, including at least claim 2, literally or under the doctrine of equivalents.

111. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is

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proposed to be made, used and sold as described in Defendant's Notice Letter, will, if marketed and sold, infringe each and every limitation of claim 1 of the '986 Patent. See supra ¶¶ 100-07.

112. According to Defendant's Notice Letter, and upon information and belief, the pharmaceutically acceptable anion for Compound I in Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is bromide. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product" (emphasis added)); Ex. K ("Umeclidinium bromide").

113. Claim 3 of the '986 Patent recites:

The combination product according to claim 2, wherein Compound (I) is 4-[hydroxy(diphenyl)methyl]-1-{2-[(phenylmethyl)oxy]ethyl}-1-azoniabicyclo[2.2.2]octane bromide.

Ex. D at 19:5-8.

114. According to Defendant's Notice Letter, and upon information and belief, the components of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product"); Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent").

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115. Upon information and belief, use of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate would infringe one or more claims of the '986 Patent, including at least claim 3, literally or under the doctrine of equivalents.

116. According to Defendant's Notice Letter, and upon information and belief, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is proposed to be made, used and sold as described in Defendant's Notice Letter, will, if marketed and sold, infringe each and every limitation of claims 1 and 2 of the '986 Patent. See supra ¶¶ 100-12.

117. According to Defendant's Notice Letter, and upon information and belief, Compound I in Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is 4-[hydroxy(diphenyl)methyl]-1-{2-[(phenylmethyl)oxy]ethyl}-1-azoniabicyclo[2.2.2]octane bromide. See, e.g., Ex. J at 3 ("fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent"); Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product").

118. Claim 5 of the '986 Patent recites:

The combination product according to claim 3, wherein Compound (II) is 4-
{(1R)-2-[(6-{2-[(2,6-dichlorobenzyl)oxy]ethoxy}hexyl)amino]-1-hydroxyethyl)-
2-(hydroxymethyl)phenol triphenylacetate.

Ex. D at 19:14-17.

119. According to Defendant's Notice Letter, and upon information and belief, the components of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg
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have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. See, e.g., Ex. E ("abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200

mcg/62.5 mcg/25 mcg) product”); Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”).

120. Upon information and belief, use of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate would infringe one or more claims of the ’986 Patent, including at least claim 5, literally or under the doctrine of equivalents.

121. According to Defendant’s Notice Letter, and upon information and belief, Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is proposed to be made, used and sold as described in Defendant’s Notice Letter, will, if marketed and sold, infringe each and every limitation of claims 1-3 of the ’986 Patent. See supra ¶¶ 100-17.

122. According to Defendant’s Notice Letter, and upon information and belief, Compound II in Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg is

4-((1R)-2-((6-((2-((2,6-dichlorobenzyl)oxy)ethoxy)hexyl)amino)-1-hydroxyethyl)-2-(hydroxymethyl)phenol triphenylacetate. See, e.g., Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”); Ex. E (“abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product”).

123. Claim 14 of the ’986 Patent recites:

The combination product according to claim 5, wherein the pharmaceutical combination product further comprises 6 α ,9 α -difluoro-17 α -[(2-furanylcarbonyl)oxy]-11 β -hydroxy-16 α -methyl-3-oxo-androsta-1,4-diene-17 β -carboxylic acid S-fluoromethyl ester (fluticasone furoate).

Ex. D at 19:51-55.

124. According to Defendant’s Notice Letter, and upon information and belief, the components of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg have the same active ingredients, the same route of administration, the same dosage form, and the same strengths as the corresponding components of TRELEGY ELLIPTA 200/62.5/25 mcg. See,

e.g., Ex. E (“abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product”); Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”).

125. Upon information and belief, use of Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate would infringe one or more claims of the ’986 Patent, including at least claim 14, literally or under the doctrine of equivalents.

126. According to Defendant’s Notice Letter, and upon information and belief, Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg and the way it is proposed to be made, used and sold as described in Defendant’s Notice Letter, will, if marketed

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and sold, infringe each and every limitation of claims 1-3, and 5 of the ’986 Patent. See supra ¶¶ 100-22.

127. According to Defendant’s Notice Letter, and upon information and belief, Defendant’s proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg further comprises

6 α ,9 α -difluoro-17 α -[(2-furanylcarbonyl)oxy]-11 β -hydroxy-16 α -methyl-3-oxo-androsta-1,4-diene-17 β -carbothioic acid S-fluoromethyl ester (fluticasone furoate). See, e.g., Ex. J at 3 (“fluticasone furoate 200 mcg/inhalation, umeclidinium bromide 62.5 mcg base/inhalation equivalent, and vilanterol trifenate 25 mcg base/inhalation equivalent”); Ex. E (“abbreviated new drug application (ANDA) for fluticasone furoate, umeclidinium, and vilanterol inhalation powder, a generic version of the high-strength Trelegy® Ellipta® (200 mcg/62.5 mcg/25 mcg) product” (emphasis added)).

128. Upon information and belief, Defendant had actual and constructive knowledge of the ’986 Patent prior to filing ANDA No. 221261, and was aware that the filing of ANDA No. 221261 with the FDA constituted an act of infringement of the ’986 Patent.

129. Upon information and belief, Defendant knows that its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg

base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate and the proposed labeling for that product are especially made or adapted for use in infringing the '986 Patent, and that the proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate and the proposed labeling for that product are not suitable for any substantial noninfringing use. Upon information and belief, Defendant plans and intends to infringe, and will induce and/or contribute

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to the infringement of, the '986 Patent, immediately and imminently upon FDA approval of ANDA No. 221261.

130. Upon FDA approval of ANDA No. 221261, Defendant will infringe the '986 Patent by making, using, offering to sell, and selling its proposed generic version of TRELEGY ELLIPTA 200/62.5/25 containing 200 mcg/inhalation fluticasone furoate, 62.5 mcg base/inhalation equivalent umeclidinium bromide, and 25 mcg base/inhalation equivalent vilanterol trifenate in the United States and/or importing such proposed generic drug product into the United States, and by actively inducing and contributing to infringement by others, in violation of 35 U.S.C. § 271(a)-(c), unless enjoined by the Court.

131. If infringement of the '986 Patent by Defendant is not enjoined, GSK will suffer immediate, substantial, and irreparable harm for which there is no adequate remedy at law.

132. Transpire's infringement of the '986 Patent is willful.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs request that this Court grant the following relief:

a.

A judgment that one or more claims of the Asserted Patents are infringed by Defendant's submission of ANDA No. 221261, and that the making, using, offering to sell, or selling in the United States, or importing into the United States, of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg as described in ANDA No. 221261 by Defendant will directly infringe, actively induce infringement, and/or contribute to the infringement of the Asserted Patents, literally or under the doctrine of equivalents;

b.

An order pursuant to 35 U.S.C. § 271(e)(4)(A) providing that the effective date of

any FDA approval of ANDA No. 221261 shall be a date that is not earlier than the expiration date

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of the Asserted Patents, including any extensions and/or additional periods of exclusivity to which Plaintiffs are or become entitled;

c.

An order permanently enjoining Defendant, its affiliates, subsidiaries, and each of its officers, agents, servants and employees, and those acting in privity or concert with them, from making, using, offering to sell, or selling in the United States, or importing into the United States, Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg inhalation powder associated with ANDA No. 221261 until after the expiration date of the Asserted Patents, including any extensions and/or additional periods of exclusivity to which Plaintiffs are or become entitled;

d.

Damages or other monetary relief to Plaintiffs if Defendant engages in commercial manufacture, use, offers to sell, sale, and/or importation in or into the United States of Defendant's proposed generic version of TRELEGY ELLIPTA 200/62.5/25 mcg as described in ANDA No. 221261 prior to the expiration of the Asserted Patents, including any extensions and/or additional periods of exclusivity to which Plaintiffs are or become entitled, and that such damages or monetary relief be trebled and awarded to GSK with prejudgment and post-judgment interest;

e.

f.

That Plaintiffs be awarded their fees and costs incurred in this litigation; and

Such further relief as this Court deems proper and just, including but not limited to any appropriate relief under Title 35.

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Date: June 16, 2026

/s/ Mark F. Raymond

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